SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday June 23, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.**

2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/ **Meeting ID:** 160 624 8977 **Password:** 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM
LINE 1
20-CIV-03085 SHAYAN BOLBOLAN VS. MIKE GENARDINI, ET AL.

SHAYAN BOLBOLAN	PRO SE
MIKE GENARDINI	ALEXANDER M. KALLIS

MOTION OF DEFENDANTS MIKE GENARDINI FOR DISMISSAL WITH PREJUDICE OF PLAINITFF'S COMPLAINT

TENTATIVE RULING:

Defendants On TrackAutomotive Repair's ("OnTrack") and Mike Genardini's Motion for Dismissal with Prejudice of Plaintiff Shayan Bolbolan's Complaint is GRANTED IN PART.

This motion was originally set for May 19, 2026, but the Court granted Plaintiff Shayan Bolbolan's ex parte request to continue the motion.

Legal Standard for Mandatory Dismissal for Failure to Prosecute

The time to bring an action to trial is five years. (Code Civ. Proc., § 583.310.) The only periods excluded from the calculation of the five years are those where: (1) the jurisdiction of the court was suspended; (2) prosecution or trial of the action was stayed; and (3) bringing the action to trial was otherwise impossible, impracticable, or futile. (*Id.*, at § 583.340.) For cases filed on or before April 6, 2020, the Judicial Council extended the deadline sixth months. There is a split in authority on whether the rule is valid. (*Barron v. Santa Clara County Valley Transportation Authority* (2023) 97 Cal.App.5th 1115, 1124 [concluding Emergency Rule 10 is valid]; *Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 825 [finding extension invalid].) However, since the case was filed after April 6, 2020, this six month deadline does not apply.

On July 23, 2020, plaintiff filed this case. Accordingly, the case had to be brought to trial by on or about July 23, 2025, eleven months ago unless there was tolling.

Plaintiff Has Not Made a Showing of Impossibility, Impracticability or Futility

Plaintiff has opposed the motion. It is Plaintiff's burden to make show that it was impossible, impracticable or futile to bring the case to trial within five years. (*Martinez v. Landry's Restaurants, Inc.* (2018) 26 Cal.App.5th 783, 794.) Plaintiff makes several unsupported and irrelevant contentions on pages 2 and 3 of his submission regarding the alleged actions of the Hon. Nancy L. Fineman and defense counsel. None of the reasons are supported by legal authority, and the court is aware of no such authority, that use these alleged facts to extend the five year statute. In addition, Plaintiff on page 1 of his submission raises two issues: Judge Fineman made numerous sua-sponte continuances for trial setting hearings and thus the case was tolled for about three years and that from April 2024 until now, another judge of this court, due to plaintiff's illness, said that plaintiff was not to move forward with any court proceedings, such as trial.

As to the first contention about the stay due to continuances, the record shows a different chronology. This case was initially set for trial on October 26, 2022 with the parties in pro per, but due to Judge Fineman being in another trial, she continued the case. (Min. of Oct. 4, 2022.) The minutes reflect that the parties agreed that the case would be a two day court trial with a new trial date of February 23, 2023 and plaintiff discussed amending the complaint. (*Ibid*.) Newly retained defense counsel requested a trial continuance which was granted on January 20, 2023 (Order filed Jan. 20, 2023) and on January 31, 2023, trial was reset for March 15, 2023. (Min. of Jan. 31, 2023.) However, on March 13, 2023, Plaintiff then filed a Code of Civil Procedure section 170.1 challenge to Judge Fineman, she issued an order vacating the trial so that the challenge could be decided, and set a trial setting conference for August 15, 2023. (Order Vacating Trial file Mar. 17, 2023.) On April 18, 2023, the challenge to Judge Fineman was overruled/denied. (Order filed Apr. 18, 2023.) No party sought to advance the trial setting conference. On August 15, 2025, Plaintiff failed to appear for the August 15, 2023 trial setting conference but defense counsel appeared. (Min. of Aug. 15, 2023.) At the next trial setting conference on September 19, 2023, all parties appeared and Plaintiff requested a continuance because he wanted to amend the complaint and the court set a trial setting conference for December 5, 2023. (Min. of Sept. 19, 2023.) On October 18, 2023, Plaintiff filed his motion for leave to file a first amended complaint, which motion was granted on November 14, 2023. (Min. of Nov. 14, 2023.) At the December 5, 2023 trial setting conference, Plaintiff did not appear but defense counsel did. (Min. of Dec. 5, 2023.) At the March 5, 2024 trial setting conference, all parties appeared and all parties agreed that Plaintiff could bring a motion to file an amended complaint. No amended complaint was filed before the August 20, 2024 trial setting conference. At that conference, all parties were present and Plaintiff requested a continuance of three months because he was ill. (Min. of Aug. 20, 2024.) At the December 10, 2024 trial setting conference, Plaintiff failed to appear. (Min. of Dec. 10, 2024.) At the August 26, 2025 trial setting conference, Plaintiff failed to appear and the Court denied an order motion to dismiss based upon the five-year statute. (Min. of Aug. 26 2025.) The court set an order to show cause re dismissal for failure to prosecute for January 13, 2026. (*Ibid*.) On January 13, 2026, all parties were present, and the court continued the OSC until June 30, 2026. (Min. of Jan. 13, 2026.) On February 2, 2026, defendants filed this motion to dismiss. Thus, the record shows that two trials were set and continued, but that all other delays are attributable to Plaintiff. Even now the newly added defendant in the First Amended Complaint, Jesus Jara, does not appear to have been properly served so the case is not at issue. While the continuances might serve as facts supporting a finding of tolling, they do not automatically toll the action such as when there is a stay of the entire case. (See *Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081; *Seto v. Szeto* (2022) 86 Cal.App.5th 76; *De Santiago v. D & G Plumbing, Inc.* (2007) 155 Cal.App.4th 365, 372.) Plaintiff makes no showing that because of these continuances, it was impossible, impracticable or futile to bring this case to trial. Further, most of the continuances were due to either Plaintiff's failure to appear or his request for additional time to, e.g. amend the complaint and the court finds a lack of diligence on his part because the last trial continuance was in March of 2023, over three years ago.

Plaintiff also claims that due to an illness, from April 2024 until now, another judge of this court said that he could not move forward with any court proceeding such at trial. This reason could support tolling. However, Plaintiff provides no evidence to support this contention; only his conclusory statement. The Court is aware that Plaintiff once asked for a three month continuance because of alleged health issues, but no evidence was provided at the hearing of health issues and the trial setting conference was continued by stipulation. Without evidence of the illness and without any explanation of how the illness made it impossible, impracticable or futile to bring the case to trial within five years, the Court must reject his argument.

Five-Year Period Has Not Expired as to Entire Case

This action was commenced on July 23, 2020, more than five years ago and six months ago by Plaintiff who has acted in pro per during the entirety of this action. (See Jul. 23, 2020 Cpt.) The case has not been brought to trial. Defendants Genardini and On Track request "the Court dismiss, with prejudice, the entirety of Plaintiff's civil action against Defendants … ." (Feb. 3, 2026 Memorandum of Points & Authorities, p. 3, ll. 12–13.) Defendant Jesus Jara, who has not appeared, did not join the motion.

The time at which the five-year period commences may be different for different defendants, meaning the five-year deadline may have expired as to one defendant but not another.

> As to a defendant either expressly named in the original complaint, or named in the original complaint by a fictitious name, the action commences on the date of the filing of the complaint. [Citation.] But when a new party is added to the action, the action commences as to that party on the date of the order adding him or her as a party or on the date of filing of the pleading naming him or her as a new party.

(*Gray v. Firthe* (1987) 194 Cal.App.3d 202, 209.) Contrary to Genardini's and On Track's contention, causes of action against a later-joined defendants do not and cannot 'relate back' to any earlier pleading. (See *ibid.* [trial court erred when it "did not consider whether the defendants were persons or entities identified in the original complaint against whom some form of relief was sought"].) Thus, each of the three named defendants in this matter must be independently assessed to determine whether the claims against them are subject to mandatory dismissal.

Because the operative First Amended Complaint ("FAC") was filed on January 26, 2024, the five-year time to try causes of action against any defendants first named in the FAC has not yet expired, and those causes of action are not subject to dismissal.

Jara is not named in the complaint. Accordingly, the motion is DENIED with respect to Jara.

The question on whether Genardini and On Track were named in the original Complaint , however, is less than clear.

The original form Complaint lists "On Track Automotive Repair" as the defendant in the caption while naming "Mike (On Track Automotive)" as the defendant in section 1. (Complaint, p. 1.)

The attachment to the Complaint setting forth the basis of the suit states that Plaintiff Shayan Bolbolan is suing "Mike Ontrack." (*Id.*, at p. 3.) The other allegations of the pleading state that each defendant is a natural person except one is a business entity of unknown form. (*Id.*, at § 4.)

Judge Fineman was assigned as the judge for all purposes on June 8, 2021 and presided over the case since that date. Based upon the court's review of the pleadings in the court file, it appears that Plaintiff believed that he had sued both defendants. For example, the January 4, 2022 and February 17, 2023 Joint Case Management Statements has both Genardini and On Track in the caption. When he brought his motion for leave to file a first amended complaint, Plaintiff named both On Track and Genardini in the caption. (Mot. caption filed Oct. 18, 2023.) The proposed amended complaint names On Track, Genardini and the newly added Jara. (*Id*., p. 6/10; First Amended Cpt filed Jan. 26, 2024.)

The Court also referred to two defendants. (See e.g. Notice of Case Management and Trial Setting Conference filed July 28, 2021, Aug. 10, 2021, Sept. 29, 2021 & Dec. 7, 2021; Notice of Mandatory Settlement Conference filed Jan. 31, 2022 & Jan. 11, 2022, Aug. 30, 2022 [all listing On Trak Automotive Repair; Mike Genardini as defendants]; Order Continuing Pretrial Conference to Oct. 4, 2022 at 10:00 a.m.; Pretrial Orders filed Jan. 11, 2022 & Oct. 4, 2022 [all listing as defendants On Track Automotive Repair *et al*.].) Plaintiff never told the court that there was only one defendant. The Court does note that the minutes are inconsistent about naming who is a defendant and that it appears that only Genardini, in pro per, initially answered the complaint but that the answer is unclear. When Alexander M. Kallis substituted in as counsel on January 30, 2023, he only substituted in for Genardini.

Based upon the reference to Mike Ontrack in section one of the complaint, the numerous times Plaintiff listed both On Track and Genardini in the caption prior the First Amended Complaint being filed, Plaintiff never objecting to the Court's references to both On Track and Genardini in pleadings, and the lack of opposition by Plaintiff, the Court determines that both On Track and Genardini were named in the original complaint. (See *Cal. Prac. Guide Civ. Proc. Before Trial* § 6:91 et seq. (TRG June 2026 update) [discussing errors in defendants' names].) Accordingly, the motion is GRANTED as to On Track and Genardini and the action is dismissed against them.

Based upon this ruling, the Court vacates the June 30, 2026 OSC re Dismissal to Prosecute Timely hearing.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for On Track and Genardini shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 2
22-CIV-05082 JUANA MARGARITA OLGUIN ACOSTA VS. COSTCO WHOLESALE CORPORATION, ET AL.

JUANA MARGARITA OLGUIN ACOSTA	BRIAN GORDON BEECHER
COSTCO WHOLESALE CORPORATION	SHARON C. COLLIER

PLAINTIFF'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT COSTCO WHOLESALE CORPORATION'S EMPLOYEE JULIE MCKNIGHTS

TENTATIVE RULING:

Plaintiff Juana Margarita Olguin Acosta's Motion to Compel the Deposition of Defendant Costco Wholesale Corporation's Employee: Julie McKnight and Request for Monetary Sanctions is DENIED, as follows:

Service of Deposition Notice

Service of a deposition notice is effective to compel any deponent who is "a party to the action or an officer, director, managing agent, or employee of a party" to attend, testify, and produce documents. (Code Civ. Proc., § 2025.280.) Unlike third-party witnesses, who require service of a deposition subpoena under Code of Civil Procedure section 2020.010, employees of a corporate party defendant need only be served with proper notice directed to the corporation's attorney of record. (Code Civ. Proc., § 2025.280.) However, a witness "is not obliged to attend as a witness before any court, judge, justice or any other officer, unless the witness is a resident within the state at the time of service." (*Id*., § 1989.) Service of a deposition notice is effective to compel attendance of an out-of-state employee only if the notice specifies a location within 75 miles of the deponent's residence or a business office. (*Id*., § 2020.010 subd. (b).) In this case, there is no dispute that Linda McKnight is a resident of Washington state. (O"Brienf-Koari Decl., ¶ 2; Reply Brief at p. 2.)

Even when a deposition is conducted by videoconference, the underlying location requirements of Code of Civil Procedure sections 2025.250 and 1989 remain in effect because section 2025.310 subd. (d) explicitly preserves all other deposition requirements when remote attendance is used, stating that remote participation "does not waive any other provision of this title, including, but not limited to, provisions regarding the time, place, or manner in which a deposition shall be conducted". (Code Civ. Proc., § 2025.310 subd. (d).) A party who receives a deposition notice that does not comply with the location requirements must promptly serve a written objection specifying the error at least three calendar days before the scheduled deposition, or the objection is waived. (*Id*., § 2025.410 subd.(a); *Parker v. Wolters Kluwer United States, Inc*. (2007) 149 Cal.App.4th 285.)

Here, Plaintiff seeks to compel the deposition of Defendant Costco Wholesale Corporation's employee, McKnight. Plaintiff served a deposition notice on April 16, 2026 for an April 28, 2026 deposition date for McKnight. (Chou-Chan Decl., ¶2.) The notice states that the location is "VIA ZOOM [with a Zoom link provided to all participants in advance." (*Id*., at Exh. 1.) Defendant Costco served objections on April 24, 2026, which included an objection that "the Notice of Deposition is procedurally defective in that i[t] fails to comply with C.C.P. §§ 1989 and 2026.010." (*Id*., at ¶3, Exh. 2.) Plaintiff contends that the objections were untimely, but it is not contested that they were served on April 24, 2026, more than three calendars days before the noticed date for the deposition, so Defendant's objections are timely pursuant to Code of Civil Procedure section 2025.410 subdivision (a).

Plaintiff's deposition notice does not specify a location within 75 miles of the deponent's residence or a business office as required by Code of Civil Procedure. section 2020.010, subdivision (b). (See (Chou-Chan Decl., ¶2, Exh. 1.) Instead, no location is specified, with the notice instead indicating only the manner of the deposition, noting that it is to be taken via Zoom. (*Id*.) Because McKnight lives in Washington State, under Code of Code of Civil Procedure section 1989, Plaintiff could not compel McKnight to appear because she lives in Washington and the fact that the deposition was to be by Zoom does not change the analysis. Defendant timely objected to the deficiency in the deposition notice. The notice therefore is not effective to compel attendance at the deposition. (Code Civ. Proc., §§ 1989, 2020.010, subd. (b); *Toyota Motor Corp. v. Superior Court* (2011) 197 Cal.App.4th 1107.)

The Motion is accordingly DENIED, and the Court declines to reach the substantive issues raised therein.

Defendant's request for monetary sanctions is GRANTED. The court awards Defendant $1,340 as discovery sanctions based upon four hours at $335 per hour as a reasonable rate.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 3

23-CIV-01887 CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING PRO SE
ERIC STUART

PLAINTIFF'S MOTION FOR RELIEF FROM DEEMED ADMISSION (CCP § 2033.300)

TENTATIVE RULING:

Plaintiff Charles King brings a motion for relief from deemed admissions. He filed this motion on May 5, 2026. The court DENIES his motion.

On May 19, 2026, this court heard defendants' motion to deem facts admitted and recognizing that plaintiff had filed this motion provided plaintiff with an opportunity to have the motion to deem facts admitted denied and make this motion moot. The tentative ruling issued on May 18, 2026 provided:

> While plaintiff has not filed any opposition to any of the three motions, on May 5, 2026, he filed a motion for relief from deemed admissions, which is set for hearing on June 28, 2026 (plaintiff had scheduled the hearing for May 19, 2026, but the date was changed by the clerk's office due to calendar unavailability on May 19, 2026). In the proposed order, plaintiff attaches signed and verified responses to the request for admissions, which responses contain no objections. (Proposed Order Granting Plaintiff's Motion for Relief From Deemed Admissions filed May 6, 2026.) Plaintiff's motion has in the table of contents a reference to a proof of service on page 11, but no proof of service is included and there are only six pages in his motion. The proposed order does not have a proof of service and there is no stand alone proof of service in the file.
>
> Pursuant to Code of Civil Procedure section 2033.280, subdivision (c), if a party prior to the hearing serves a response in substantial compliance with Code of Civil Procedure section 2033.220, the court does not deem the requests admitted. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.) Here, the responses are in substantial compliance: they have no objections, deny the requests, and are verified. However, there is no evidence that they have been served, another requirement. Thus, unless plaintiff demonstrates prior to the hearing by email to Department 4 and defendants that the responses have been served on defendants and he properly contests the tentative ruling and appears at the hearing (Zoom appearances are allowed), the motion is denied and the facts are deemed admitted. If plaintiff shows proof of service on defendants prior to the hearing, the motion to deem the facts admitted is denied. If he fails to follow this procedure, the motion is granted

(Min. of May 19, 2026.) No party contested the tentative and plaintiff did not show proof of service on defendants of this motion. Thus, the court granted the motion. Defendants rely on this court's order to argue that the court should deny this motion.

However, Plaintiff is seeking relief from deemed admissions in this motion and defendants do not cite, and the court is aware of no authority that prohibits the court from considering whether plaintiff is entitled to relief because of mistake, inadvertence or excusable neglect. Thus, the court considers the motion on the merits.

In this motion, plaintiff files a declaration that he reasonably believed that his former attorney had prepared and served responses, he believed that the responses applied to both defendants, and he did not intentionally failed to respond, but his failure was the result of mistake, inadvertence and excusable neglect. He attaches to the proposed order verified responses that contain no objections.

A problem with this declaration, however, as defendants point out, plaintiff has not had an attorney since February 3, 2025 and these requests for admissions were served on it by both defendants on August 13, 2025. The record reflects that on April 25, 2023, plaintiff in pro per filed his complaint. On February 29, 2024, an attorney James Arrasmith substituted in for plaintiff. On February 3, 2025, Arrasmith substituted out and King began representing himself again and has represented himself in this action since then. The proofs of service show that the requests were served on plaintiff and not an attorney. (Amended Notice and Motion to Deem the Truth of the Matters Admitted filed March 4, 2026.) Thus, plaintiff was representing himself at the time the requests for admissions were served and cannot shift the blame to an attorney.

Additionally, during case management conferences, starting in September 2025 and continuing at the conferences on December 9, 2025 and February 10, 2026, defendants brought up that plaintiff had not responded to discovery and the court and the parties discussed the lack of responses. (Min. of Sept. 30, 2025; Dec. 9, 2025; Feb. 10, 2026.) On March 24, 2026, this court granted the first of many motions to compel brought by defendants (that motion was to compel responses to request for production of documents, set one and set two).

Thus, plaintiff was on notice since September 2025 that he had not responded to discovery and thus, the court finds that his failure to provide responses prior to the hearing on the motion to deem facts admitted was not the result of mistake, inadvertence or excusable neglect. Plaintiff is held to the same standard as an attorney and must know the rules of civil procedure. As our Supreme Court has stated: "As alluded to, however, we make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 4

23-CIV-02884 GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP VS. LIHUI BAI, ET AL.

GONGQINGCHENG PANHUI INVESTMENT MANAGEMENT PARTNERSHIP	BRETT RAMSAUR
LIHUI BAI	GABRIEL COLWELL

SPECIALLY APPEARING DEFENDANT JIMAN ZHU'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

For the reasons stated below, Defendant Jiman Zhu's "Motion to Quash Service of Summons," filed March 26, 2026, is GRANTED.

Plaintiff's June 10, 2026 Request for Judicial Notice is GRANTED. (Evid. Code, § 452, subd.(d).)

As he did back in February 2025, specially appearing Defendant Jiman Zhu once again moves to quash the service of summons upon him, contending the Court lacks jurisdiction over him. (See Code of Civ. Proc., § 418.10, subd. (a)(1).) On February 18, 2025, Mr. Zhu filed a similar Motion to Quash service of the summons, in which he argued that service of the Summons should be quashed because (1) the Court improperly authorized Plaintiff to serve Mr. Zhu by publication, because Plaintiff had not shown reasonable diligence in first seeking to serve Mr. Zhu by other means before resorting to service by publication; and (2) the Court lacks in personam (general or specific) jurisdiction over Mr. Zhu.

In May 2025, the Court granted Mr. Zhu's prior Motion to Quash (May 21, 2025 Order), agreeing with Mr. Zhu that Plaintiff had not shown adequate diligence in attempting to serve Mr. Zhu via traditional methods before seeking to serve him by publication. In granting Mr. Zhu's prior Motion to Quash, the Court declined to address the issue of general or specific jurisdiction, since doing so was unnecessary to the ruling.

In the present Motion to Quash, Mr. Zhu again moves to quash service of the summons on the same two alternative grounds: (1) that the Court lacks general or specific jurisdiction over Mr. Zhu, and (2) the Court improperly granted Plaintiff authorization to serve Mr. Zhu by publication.

As discussed below, since the Court finds that Plaintiff has not shown that Mr. Zhu had sufficient minimum contacts with California at the time this case was filed to support a finding of personal jurisdiction over him, the Court declines to address the service by publication issue.

GENERAL PRINCIPLES RELATING TO PERSONAL JURISDICTION

A California court "may exercise personal jurisdiction on any basis consistent with the Constitutions of California and the United States." (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal. App. 5th 964, 975–76; see also Code Civ. Proc., § 410.10.) "The exercise of jurisdiction over a nonresident defendant comports with these Constitutions 'if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate " 'traditional notions of fair play and substantial justice.' ") (*Id.*) Under the minimum contacts test, 'an essential criterion in all cases is whether the "quality and nature" of the defendant's activity is such that it is "reasonable" and "fair" to require him to conduct his defense in that State.' " (*Id.*)

A motion to quash service of a Summons for lack of personal jurisdiction is an evidentiary motion. When, as here, a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction by a preponderance of the evidence. (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449; *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209-210 (*ViaView*).) To satisfy this initial burden, a plaintiff "must come forward with affidavits and other competent evidence ... and cannot simply rely on allegations in an unverified complaint." (*ViaView* at p. 210; *Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 393 [jurisdictional allegations must be supported by "competent evidence of jurisdictional facts. Allegations in an unverified complaint are insufficient to satisfy this burden of proof."]; (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710 [an unverified pleading has no evidentiary value in determining personal jurisdiction.].) Once the plaintiff establishes facts showing minimum contacts with the forum state, it then becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable. (*Vons, supra,* 14 Cal.4th at pp. 444-449.)

There are "two kinds of personal jurisdiction: general (sometimes called all-purpose) jurisdiction and specific (sometimes called case-linked) jurisdiction." (*Ford Motor Co. v. Montana Eighth Judicial Dist. Court* (2021) 592 U.S. 351, 358 (*Ford Motor*).)

PLAINTIFF HAS NOT ARGUED, NOR SHOWN, THAT THE COURT HAS GENERAL JURISDICTION OVER MR. ZHU

Plaintiff's Opposition does not argue that the Court has general jurisdiction over Mr. Zhu, essentially conceding that general jurisdiction does not exist. "For an individual, the paradigm forum for the exercise of general jurisdiction is the individual's domicile … but a court may also exercise general jurisdiction over a nonresident defendant where the defendant's presence in the forum is so 'continuous and systematic' that the defendant is 'essentially at home' there. (*Daimler AG v. Bauman* (2014) 571 U.S. 117, 137, 139, fn. 19; *Hardell v. Vanzyl* (2024) 102 Cal. App. 5th 960, 971 [defendant's contacts with the forum must be so wide-ranging that they take the place of physical presence in the forum].) Because Plaintiff has not argued nor shown that Mr. Zhu was in any sense "at home" in California, a general jurisdiction showing has not been made.

PLAINTIFF HAS NOT SHOWN THAT THE COURT HAS SPECIFIC JURISDICTION OVER MR. ZHU

In contrast to general jurisdiction, specific jurisdiction "covers defendants less intimately connected with a State, but only as to a narrower class of claims. The contacts needed for this kind of jurisdiction often go by the name 'purposeful availment.' " (*Ford Motor, supra*, 592 U.S.at p. 359 [141 S.Ct. at p. 1024].) For a state to have specific jurisdiction, the defendant "must take 'some act by which [it] purposefully avails itself of the privilege of conducting activities within the forum State.' The contacts must be the defendant's own choice and not 'random, isolated, or fortuitous.' They must show that the defendant deliberately 'reached out beyond' its home—by, for example, 'exploi[ting] a market' in the forum State or entering a contractual relationship centered there. Yet even then—because the defendant is not 'at home'—the forum State may exercise jurisdiction in only certain cases. The plaintiff's claims ... '*must arise out of or relate to the defendant's contacts' with the forum*." (*Id.* at p. 359 [emphasis added].)

Thus, a two-part showing by the plaintiff is required to establish specific jurisdiction: "[(1)] the defendant has 'purposefully directed' his activities at residents of the forum, ... and [(2)] the litigation results from alleged injuries that 'arise out of or relate to' those activities." (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472–473.)

Here, the evidence, as well as Plaintiff's own allegations, describe a PRC-based dispute that has little connection with California. Plaintiff is a PRC resident. (FAC at ¶ 10.) Plaintiff alleges that Mr. Zhu is also a PRC resident. (Id. at ¶ 11.) There is no dispute that the Repurchase Agreement, which formed the basis for the underlying lawsuit in China, was executed and performed in China. (*Id*. ¶¶ 15-24); id. at Ex. 1, English Translation at p. 2-6.)

Mr. Zhu has testified that he has never resided in California, does not own any personal or real property or assets in California, and does not operate any business in California. (Feb. 2025 Zhu Decl. at ¶¶ 2-3; Mar. 2026 Zhu Decl., at ¶ 2 (confirming "[n]one of the facts set forth in the Feb. 2025 Zhu Decl. have changed"). By Plaintiff's own admission, Plaintiff investigated whether Mr. Zhu ever owned real property or used any property address(es) in California, but found no property associated with Mr. Zhu. (Nov. 22, 2024 Decl. of Rongping Wu, ¶ 12.)

Instead, to support its specific jurisdiction argument, Plaintiff offers evidence regarding the following: (1) in 2017, Mr. Zhu received child surrogacy services in California, and participated in related litigation in California for child parentage; (2) Mr. Zhu had some connection with a California corporation (Gloria Biotech Corporation), based in Hong Kong, which dissolved in 2024; (3) an alleged Zhu family business entity (Harbin Gloria Pharmaceuticals Co., Ltd.) made a $40 million investment in a Delaware company (Proteus Digital Health, Inc.) which was registered to do business in California, which declared bankruptcy in 2020; and (4) prior to 2023, Mr. Zhu's wife, co-defendant Bai, partly-owned real property in Atherton, Ca. (See Opp. at 10; June 2026 Wu Decl. at ¶¶ 21-23.)

But Plaintiff has not sufficiently explained/shown how any of Mr. Zhu's above-referenced alleged California contacts relate to the underlying PRC Judgment and/or to the present lawsuit.

That is, Plaintiff has not shown/explained a sufficient nexus between Mr. Zhu's alleged California contacts and the present case, or the underlying PRC litigation.

The referenced surrogacy proceeding and related litigation (see June 10, 2026 Rongping Wu Decl., ¶ 21) do not appear to have anything to do with the present case and/or the PRC litigation. Mr. Wu's declaration states that in 2017, long before entry of the 2020 PRC judgment, Mr. Zhu and his wife came to California and contracted for surrogacy services to be performed by a surrogate in California, and they later engaged in litigation in California to establish their parentage. (Wu Decl., 21.) But Plaintiff does not even argue that these California contacts have/had any connection with this case or the PRC judgment.

Paragraph 22 of Rongping Wu's June 10, 2026 Declaration states, in part:

> 22. Upon information and belief, Judgment Debtors amassed their fortune in the pharmaceutical industry by establishing a corporate network of entities sharing the name "Gloria." The backbone entity of their enterprise was Harbin Gloria Pharmaceuticals Co., Ltd. Judgment Debtors held their equity in and controlled the backbone entity through Gloria Group, a co-judgment debtor in the Final Judgment and also the sole shareholder of Gloria Holdings (Hong Kong) Co., Ltd. As of March 2023, the Defendant was the sole director of Gloria Holdings (Hong Kong) Co., Ltd. A true and accurate copy of Gloria Holdings (Hong Kong) Co., Ltd.'s 2022 Annual return filed with the Hong Kong Companies Registry is attached hereto as Exhibit G. Harbin Gloria Pharmaceuticals Co., Ltd., made a $40 million investment in Proteus Digital Health, Inc., an entity registered to do business in California and organized in Delaware. Proteus Digital Health, Inc.'s equity received in exchange for the investment was subsequently held by Gloria Holdings (Hong Kong) Co., Ltd. On or around June 15, 2020, Proteus Digital Health, Inc., filed for bankruptcy in Delaware. Gloria Holdings (Hong Kong) Co., Ltd., is listed as the holder of 1,582,275 shares in the bankruptcy documents. True and accurate copies of the CA Secretary of State registration and initiating documents for the Delaware bankruptcy proceeding for Proteus Digital Health, Inc., are attached hereto as Exhibit H.

Paragraph 23 of Wu's June 10, 2026 Declaration states:

> Gloria Biotech Corporation was incorporated in California on March 18, 2021, and dissolved on 14 February 2023. For the duration of its brief existence, Gloria Biotech Corporation's Secretary was Defendant's daughter-in-law, the spouse of the Son, and its mailing address was the Pacifica Address. Upon information and belief, Gloria Biotech Corporation was owned by Gloria Holdings (Hong Kong) Co., Ltd., and controlled by the Defendant. Although incorporated in California, Gloria Biotech Corporation's principal executive office address was listed [at an address in Hong Kong], which is the registered address of Gloria Holdings (Hong Kong) Co., Ltd. A true and accurate copy of the 2022 Statement of Information for Gloria Biotech Corporation filed with the California Secretary of State is attached hereto as Exhibit I.

But nowhere in Plaintiff's Opposition brief (at pp. 7-8; 10-11) or in the Wu Declaration (at ¶¶ 21-23) does Plaintiff meaningfully explain how Mr. Zhu's above-referenced contacts with California are connected to this litigation or to the underlying PRC judgment, nor any such connection apparent to this Court. This lack of a sufficient nexus is dispositive, because to provide a basis for specific jurisdiction, the controversy must be related to or arise out of Mr. Zhu's contacts with California. (*Vons, supra,* 14 Cal.4th 434, 446-47.) Furthermore and also dispositive, declarations based upon information and belief are of no evidentiary value. (*Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150 fn. 2 [*citing Riviello v. Journeymen Barbers, etc., Union* (1948) 88 Cal.App.2d 499, 503]; see *Cal. Prac. Guide Civ. Pro. Before Trial* § 9:60 (TRG June 2026 update).) The key information in the Wu declaration is based upon information and thus in this evidentiary motion, plaintiff has failed to meet the required evidentiary burden.

Having reviewed the moving, opposition, and reply papers and the supporting evidence, the Court finds that Plaintiff has not shown that this controversy is related to or arises out of Mr. Zhu's contacts with California.

PLAINTIFF HAS NOT SHOWN THAT THE COURT HAS QUASI IN REM JURISDICTION OVER MR. ZHU

In the alternative, Plaintiff argues that Mr. Zhu owns or had an ownership interest in real property in California over which this Court may exercise quasi in-rem jurisdiction. The Court disagrees that Plaintiff has made such a showing.

"Theoretically and traditionally, an exercise of quasi in rem jurisdiction depends entirely upon the presence of property of the defendant in the forum[.]" (*Javorek v. Superior Ct.* (1976) 17 Cal.3d 629, 638, fn. 8.) Unlike an in personam judgment, "[t]he effect of a judgment in [a quasi in rem jurisdiction] case is limited to the property that supports jurisdiction and does not impose a personal liability on the property owner, since he is not before the court." (*Shaffer v. Heitner* (1977) 433 U.S. 186, 199.)

As noted, Mr. Zhu has provided a sworn statement that he does "not own any personal or real property or assets … in California." (Feb. 2025 Zhu Decl. at ¶ 3.) Plaintiff argues that Mr. Zhu's wife's (Ms. Bai's) prior ownership of the Atherton property may be used as a basis for quasi in rem jurisdiction, based on a theory that Mr. Zhu had a community property interest in the Atherton property. (Opp. at 12.) Plaintiff does not show by admissible evidence that Mr. Zhu's statement is false.

First, the evidence indicates that Ms. Bai has not held an interest in the Atherton property since April 2022, about a year before Plaintiff filed this case, when Ms. Bai conveyed her interest in the Atherton property to her son. (June 2026 Wu Decl. Ex. F (reflecting sole ownership by Yihua Zhu as of April 2, 2022); June 2026 Wu Decl. at ¶ 20 (same). Thus, even if Mr. Zhu had some community property interest in the past, that interest apparently was conveyed/ended a year prior to Plaintiff filing this case.

Second, even if Mr. Zhu's spouse (co-defendant Bai) still held an ownership interest in the Atherton property, community property rights generally only apply where at least one of the spouses was domiciled in California at the property was acquired. (Fam. Code, § 760 [community property laws apply to property "acquired by a married person during the marriage while domiciled in this state"] *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496, 505 ("Generally, the court looks to the domicile of the parties at the time the property was acquired to characterize the property"). Plaintiff does not show that Mr. Zhu or Ms. Bai were ever domiciled in California. All the evidence demonstrates that that Zhu and Bai both reside in China. (FAC at ¶¶ 11, 12); Feb. 2025 Zhu Decl. at ¶ 2 ("I am not a resident of the State of California and have never been a resident of the State of California").

Further, Mr. Zhu offers evidence suggesting that his wife purchased the Atherton property with separate property funds. (Feb. 2025 Zhu Decl. at ¶ 4 ["Separate funds that I do not have possession or control over were used to purchase the [Atherton] property."]) If that is true, the property was presumably held as Ms. Bai's separate property. (*In re Marriage of Mix* (1975) 14 Cal.3d 604, 610.) Plaintiff submits no evidence to the contrary.

Accordingly, for the foregoing reasons, co-defendant Bai's prior ownership of the Atherton property establishes a basis for exercising quasi in rem jurisdiction over Mr. Zhu.

<u>Conclusion</u>. For the foregoing reasons, defendant Zhu's motion to quash is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for specially appearing defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 5
24-CIV-03737 JESSICA LORENZO VS ANX HOLDINGS LLC

JESSICA LORENZO DOUGLAS HAN
ANX HOLDINGS LLC

MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT, CLASS COUNSEL FEES PAYMENT, CLASS COUNSEL LITIGATION EXPENSE PAYMENT, AND CLASS REPRESENTATIVE SERVICE PAYMENT

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

The Court Grants Approval of the Settlement

On January 20, 2026 (with written order on January 28, 2026), the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations.

According to the preliminary approval motion, it was estimated that there are approximately 83 class members, who worked 9,000 workweeks. The proposed settlement amount is $335,000. The settlement is estimated to provide an individual average settlement amount of $1,780.12. The settlement will provide a payment of $13,000 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the $20,000 amount allocated to resolve the PAGA allegations). The remaining $7,000 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The declaration of Amanda Howard from ILYM Group, Inc.(ILYM), the court approved claims administrator, states that there are 116 participating class members, of which 72 are aggrieved employers and that the average individual class payment is $1,342.73 with the highest individual class payment of $4,955.15 before the deduction of taxes. (Howard Decl., ¶¶ 14-15.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [" 'The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.' "].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the settlement, including the allocation between the class and PAGA settlement. (Code of Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470).

According to the declaration of Howard, on January 28, 2026, ILYM received a class list and on February 20, 2026, ILYM mailed the class notice. (Howard Decl., ¶¶ 7, 7.) Four notices were returned and remailed; thus there were no undelivered notices. (*Id.*, ¶ 9.) There have been no written disputes, no objections and three requests for exclusion. (*Id.*, ¶¶ 10-11.)

The class is ascertainable in that the class members have already been identified by defendant and they received notice of the settlement.

There is a community of interest in that common questions of law and fact predominate involving whether defendant properly calculated employee compensation. For settlement purposes, this community of interest is sufficient. Plaintiff/class representative Jessica Lorenzo's claims are typical of the class claims because she is alleged to have suffered the same injury as other class members. Lorenzo adequately represents the class, as set forth in her declaration and in having experienced class counsel. The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to take the case to trial and through a potential appeal, and the potential for a change in law. The court in granting preliminary approval discussed the risks and benefits of the settlement. The case was mediated with mediator, Jason Marsili, and the fact that there were no objections, only three opt-outs and the LDWA did not object strongly supports approval of the settlement. The court approves the settlement.

ATTORNEYS FEES

Plaintiff's counsel requests attorneys' fees of 35% or $117,250 of the gross settlement. The court awards 33%.

The court in reviewing the facts of this case finds that 33% award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Chavez v. Netflix*, *supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte*, *supra*, 1 Cal.5th at p. 503.) Plaintiff's counsel shows a lodestar of $188,700 with hourly rates requested ranging from $500.00 to $900.00. (Han Decl., ¶11.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable. Counsel rely on rates in Los Angeles County (Han Decl., ¶ 12), but this case is venued in San Mateo

County and it is the reasonable rates for San Mateo County that dictate the reasonable rates for attorneys' fees. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Han makes no effort to show the reasonable hourly rates in San Mateo County, which is part of the San Francisco Bay Area. This court, however, may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.'" (citations omitted)].). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates reasonable.

The court reviewed the work performed by the attorneys and overall concludes the work performed was top-heavy and much of it did not need the input of all three lawyers. For instance while the amount of time spent was small, it is unreasonable for three lawyers to review the notice of assignment, the request for dismissal of defendants, the notice of posting of jury fees by defendant, the drafting of plaintiff's jury fee request, and the court's notices of the complex case management conference. There is no showing why three attorneys needed to attend the mediation. The lodestar confirms in the court's mind that the fee award of 33% is reasonable, even though it results in a negative multiplier. The court acknowledges the work that plaintiff's counsel performed and commends it for successfully resolving the case, but there were no novel issues in this case, plaintiff paid the mediation fee on April 11, 2025, the mediation was held on June 6, 2025 with the case settled shortly thereafter, there was limited formal discovery and no motion practice except for the preliminary approval motion, only one case management conference and no trial date. The court in making the fee award takes into account that counsel has had to wait for payment.

COSTS

The court approves the costs of $ 26,393.43 to class counsel as reasonable and necessarily incurred. The court also approves the fees of $5,600.00 to ILYM as reasonable and necessarily incurred.

SERVICE FEE AWARD

Lorenzo requests $10,000 as a fee award, but the court awards Lorenzo $7,500.00 as a reasonable service fee award. The court acknowledges the important role she played in the litigation. While she signed a general release, she provides no facts to demonstrate that she had any claim different than the class members. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if plaintiff believes that any employer is retaliating against her for being a plaintiff in this lawsuit, she shall notify his counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id*. at pp. 460-461.) The court acknowledges the in excess of 30 hours that Lorenzo states that she spent on the case and an incentive award gives her $250.00 per hour. She did not have to sit for a deposition, respond to discovery or attend the mediation or any court hearings.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggest that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

2:00 PM
LINE 6

24-CIV-03737 JESSICA LORENZO VS ANX HOLDINGS LLC

JESSICA LORENZO DOUGLAS HAN
ANX HOLDINGS LLC

MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

See tentative ruling on motion for final approval.

2:00 PM
LINE 7

24-CIV-04622 MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS	HELGA HAKIMI
BERG SENIOR SERVICES, LLC	ANDREW R SHALAUTA

MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

First, the court notes that plaintiff failed to comply with paragraph 11 of Case Management Order No. 1 filed July 30, 2024, which requires a binder with courtesy copies. This failure increases the court's workload.

The Court Grants Approval of the Settlement

On February 17, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations.

According to the preliminary approval motion, it was estimated that there are approximately 450 class members with a proposed settlement amount of is $1,100,000.00. The settlement will provide a payment of $60,000 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the $80,000 amount allocated to resolve the PAGA allegations). The remaining $20,000 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The average payment to participating class members is $1,437.90, and the highest is $3,374.84. (Declaration of Kevin Lee ¶¶ 6-8.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [" 'The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.' "].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the settlement, including the allocation between the class and PAGA settlement. (Code of Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470).

According to the declaration of Kevin Lee of Phoenix Settlement Administrators (Phoenix), the approved settlement administrator, on February 17, 2026, Phoenix received a class list from class counsel, on March 9, 2026, received an updated list from defense counsel, and on March 9, 2026 mailed 431 class notice with addresses updated through the national change of address database. (Lee Decl., ¶¶ 3, 4.) , 2026) Eighteen notices were returned, fourteen packages were re-mailed with a better mailing addresses and four notices were unable to be remailed. (*Id*. ¶¶ 4, 5.) There have been no objections and no valid requests for exclusion. (*Id*. ¶¶ 6, 7.)

The class is ascertainable in that the class members have already been identified by defendant and they received notice of the settlement.

There is a community of interest in that common questions of law and fact predominate involving whether defendant properly calculated employee compensation. For settlement purposes, this community of interest is sufficient. This court has already found that plaintiff/class representative Martin Aeron Arias's claims are typical of the class claims because he is alleged to have suffered the same injury as other class members and there is no information to the contrary. He adequately represents the class and has experienced class counsel. The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to take the case to trial and through a potential appeal, and the potential for a change in law. The court in granting preliminary approval discussed the risks and benefits of the settlement. The case was mediated with mediator, Louis Martin, and the fact that there were no objections or opt-outs out and the LDWA did not object strongly supports approval of the settlement. The court approves the settlement.

ATTORNEYS FEES

The court denies without prejudice plaintiff's counsel request for attorneys' fees.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

In reviewing the evidence submitted, the court finds that plaintiff's counsel makes no attempt to show that the hourly rates are reasonable for San Mateo County where this case is venued. Counsel must demonstrate that the rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].)

The court cannot make a determination of whether the work performed was reasonable. Raul Perez's declaration provides a summary of the hours worked in a chart in paragraph 19 of his deposition. There is a general overview of the litigation in paragraphs 2-9 of the Perez declaration, but it is conclusory. As a leading treatise explains:

> [14:145.1b] Proof required: The burden is on class counsel to prove the reasonable number of hours they expended on the case. [*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 CA4th 853, 883, 160 CR3d 557, 583]
>
> 1) [14:145.1c] Declarations generally sufficient: To satisfy this burden, counsel is not required to provide detailed billing timesheets. Declarations of counsel showing the number of hours expended and the tasks performed are generally sufficient. [*Concepcion v. Amscan Holdings, Inc.* (2014) 223 CA4th 1309, 1324-1325, 168 CR3d 40, 53-54 (collecting cases); see *Association for Los Angeles Deputy Sheriffs v. Macias* (2021) 63 CA5th 1007, 1031, 278 CR3d 487, 508—counsel declarations compiling data gathered from personal review of firm's billing records was not inadmissible hearsay for this purpose]
>
>   But the declarations should be sufficiently detailed to allow the court to determine if there was duplicative billing among firms or lawyers, and to estimate the time spent on tasks such as motions.

(*Cal. Prac. Guide Civ. Pro. Before Trial*, § 14:145.1b *et seq*. (TRG June 2026 update).) And this court explained what it was looking for in its ruling on the preliminary approval motion:

> The Court will decide on attorneys' fees, costs and service award at a hearing based upon a noticed motion, which will be heard on the same date as the hearing on final approval. Class Counsel is to submit evidence supporting each of these requests. The Court will not make a predetermination about the reasonableness of the attorneys' fees or service award.
>
> For the attorneys' fees award, counsel shall provide sufficient evidence so that the Court can perform a lodestar cross-check, including either billing records or comparable evidence, including which attorneys or support staff worked on each task, support for the hourly rate as reasonable in San Mateo County, and evidence, if any, supporting an award of a multiplier.

(Min. of Feb. 17, 2026.) The court has none of this evidence. Based upon the court's review of the file, there were no novel issues (certainly none like class counsel's work in *Iskanian v. CLS Transportation Los Angeles* (2014) 59 Cal.4th 348.) It appears to be a standard wage-and-hour case with no law and motion matters, except the preliminary approval, or discovery, a few case management conferences where no substantive issues or problems were raised, and an agreement to attend mediation early in the case. It is unclear why eight separate attorneys worked on the case and whether there was overlap of work or how much time was spent on any task.

COSTS

The court will consider plaintiff's counsel's requested costs of $15,177.88 and Phoenix's request for fees when it considers a renewed motion for attorneys' fees and costs.

SERVICE FEE AWARD

The court's ruling on preliminary approval stated: "For the service award, the class representative must submit a declaration with specific facts regarding his contributions; general statements are insufficient. (*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 805.) If there are any specific claims of Plaintiff that are consideration for any general release or specific reputational harm, Plaintiff shall identify them for the Court." (Min. of Feb. 17, 2026.) The court does not see any declaration from plaintiff. Therefore, the request for a service award is denied without prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary for the final approval, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggests that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

2:00 PM
LINE 8

24-CIV-04622 MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS	HELGA HAKIMI
BERG SENIOR SERVICES, LLC	ANDREW R SHALAUTA

MOTION FOR ATTORNEYS' FEES, COSTS, AND A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT

TENTATIVE RULING:

See tentative ruling for motion for final approval.

2:00 PM
LINE 9

24-CIV-05915 COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO	JESUS PEREDA
JOHN ANTHONY DE LEON	MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO REQUESTS FOR ADMISSIONS, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

The court DENIES plaintiff County of San Mateo's motion to compel defendant Encore Textile Service (Encore) responses for request for admissions, set one and for sanctions.

The court notes that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, plaintiff refers to compelling Encore "Responses to Defendant's Request for Admissions, Set One." Since plaintiff is seeking to compel, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's requests for admissions. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to June 23, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) However, Encore filed a response, which waives the objection. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

Further, plaintiff misapprehends the law. When the responses are entirely objections, which appears to be the case here, only the attorneys' signature and not a verification is required. (See e.g. *Cal. Prac. Guide Civ. Pro. Before Trial* 8:1364.2 (TRG June 2026 update) [citing Code Civ. Proc., 2023.240, subd. (a), 8:1477, *id*., § 2031.250 re document demands].) Further, although a separate statement in support of a motion to compel is not required when there are no responses, (Cal. Rules of Court, rule 3.1345(b)(1)), it is required when there are responses and a separate statement was required here. (*Id*., rule 3.1345(a).) Thus, plaintiff's motion is procedurally deficient. Plaintiff makes no attempt to show that the requests are proper and the objections are improper, which is its burden on a motion to compel.

The court notes that Encore states that it has served responses, but there is no declaration supporting that statement and the responses are not attached.

The court notes that there are two motions to compel set for July 14, 2026 and the court encourages the parties to informally resolve their dispute and vacate the hearings.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Encore shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 10

24-CIV-05915 COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO	JESUS PEREDA
JOHN ANTHONY DE LEON	MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO SPECIAL INTERROGATORIES

TENTATIVE RULING:

The court DENIES plaintiff County of San Mateo's motion to compel defendant Encore Textile Service (Encore) to respond to special interrogatories, set one and for sanctions.

The court notes that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, plaintiff refers to compelling Encore "to respond to Defendant's Special Interrogatories, Set One." Since plaintiff is seeking to compel, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's special interrogatories. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to June 23, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) However, Encore filed a response, which waives the objection. . (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

Further, plaintiff misapprehends the law. When the responses are entirely objections, which appears to be the case here, only the attorneys' signature and not a verification is required. (See e.g. *Cal. Prac. Guide Civ. Pro. Before Trial* 8:1364.2 (TRG June 2026 update) [citing Code Civ. Proc., 2023.240, subd. (a), 8:1477, *id*., § 2031.250 re document demands].) Further, although a separate statement in support of a motion to compel is not required when there are no responses, (Cal. Rules of Court, rule 3.1345(b)(1)), it is required when there are responses and a separate statement was required here. (*Id*., rule 3.1345(a).) Thus, plaintiff's motion is procedurally deficient. Plaintiff makes no attempt to show that the requests are proper and the objections are improper, which is its burden on a motion to compel.

The court notes that Encore states that it has served responses, but there is no declaration supporting that statement and the responses are not attached.

The court notes that there are two motions to compel set for July 14, 2026 and the court encourages the parties to informally resolve their dispute and vacate the hearings.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Encore shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 11

24-CIV-07750 NEERKA TANDON, ET AL. VS. TIANHAO CHEN

NEERKA TANDON	CHET R. BHAVSAR
TIANHAO CHEN	DENNIS F. MORIARTY

MOTION FOR RELIEF FROM DEFAULT AND FOR LEAVE TO FILE RESPONSIVE PLEADING [CCP §473(b)]

TENTATIVE RULING:

A stipulation and [proposed] order to set aside entry of default against Defendant Tianhao Chen was submitted on 6/22/2026. The Court signed the order on 6/22/2026 and VACATES the motion hearing as it is MOOT.

2:00 PM
LINE 12

24-CLJ-06163 LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY JOSETTE D JOHNSON
PAUL NARCISSE

LAWYERS TITLE COMPANY'S MOTION FOR ORDER DISCHARGING STAKEHOLDERFROM LIABILITY; AND AWARD OFATTORNEYS FEES AND COSTS

TENTATIVE RULING:

Plaintiff Lawyers Title Co.'s Unopposed Motion for Order Discharging Stakeholder from Liability and Award of Attorney's Fees and Costs is GRANTED.

"[W]henever conflicting claims are or may be made upon a person for or relating to personal property … , such person may bring an action against the conflicting claimants to compel them to interplead and litigate their several claims." (Code of Civ. Proc., § 386, subd. (a).) "In an interpleader action, the court initially determines the right of the plaintiff to interplead the funds; if that right is sustained, an interlocutory decree is entered which requires the defendants to interplead and litigate their claims to the funds." (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1513.)

Plaintiff Lawyers Title Co. ("LTC") presents evidence showing it served as escrow holder for a transaction between Defendants Paul Narcisse and Rina Narcisse (collectively, "Buyers") and Defendants David Stariha and Bernadette Romero (collectively, "Sellers"), where (1) Buyers cancelled the contract and attempted to retrieve the $17,500.00 held by LTC and (2) Sellers objected and refused to agree to the disbursement of the funds to Buyers. (Mar. 20, 2026 Declaration of Ron Dechaine, ¶¶ 2–6.) Escrow holders in such transactions have long been held to be neutral stakeholders with a right to interplead the buying and selling parties and be dismissed. (See *Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1490.)

The subject funds have already been deposited with the Court (see Oct. 4, 2024 Order, p. 3), and there is no opposition to LTC's request to be discharged or its request that the remaining parties be enjoined from instituting any other proceeding regarding the rights and obligations between themselves and between LTC (see Code Civ. Proc., § 386, subd. (f)).

LTC also requests for an award of attorney fees and costs to be paid out of the deposited funds. When ordering the discharge of the interpleading plaintiff, "the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a); see, e.g., *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476, 487.)

LTC supports its request for fees and costs with evidence showing it has incurred $7,437.50 in reasonable attorney fees for the services of its former counsel in this interpleader matter, $1,600.00 in attorney's fees for the services of its present counsel, and $1,029.40 in costs, for a total of $10,066.90. (Mar. 20, 2026 Declaration of Josette D. Johnson, ¶¶ 3–7, exh. B.) There is also no opposition to this request; while the Sellers' respective answers to the Complaint object to the costs of serving process on Sellers, costs of service are recoverable costs of a prevailing party and the answers do not establish any basis to deny such costs. Based upon its experience as a lawyer and trial judge, the court finds the hourly rates and time expended reasonable. (*Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-1114.)

Accordingly, the motion is granted.

Additionally, the court sets a hearing to determine how to distribute the deposited funds for September 22, 2026 at 2:00 p.m. in Department 4. Pursuant to Civil Code section 2924j, subdivision (d), the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. The court will consider all claims filed at least 15 days before this hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 13

24-CLJ-07826 BANK OF AMERICA, N.A. VS. ASHWIN L SINGH

BANK OF AMERICA, N.A.	BRIAN LANGEDYK
ASHWIN L SINGH	PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

The court notes that the notice states that the hearing will be held on the First Floor, Room A of 400 County Center, Redwood City, CA 94063, but Room A is the clerk's office. Department 4 is located in Courtroom 4C on the fourth floor.

On January 22, 2025, plaintiff served by mail defendant Ashwin L. Singh with requests for admissions. (Declaration of Audrey Calderson, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 14
25-CIV-00194 DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN NELSON W GOODELL
SANDEEP KHANNA PRO SE

MOTION FOR FEES AND COSTS AGAINST DEFENDANT SANDEEP KHANNA PURSUANT TO CODE OF CIVIL PROCEDURE § 405.38

TENTATIVE RULING:

The Motion of Plaintiff David Bernard Parvin ("Plaintiff") for Fees and Costs Pursuant to Code of Civil Procedure Section 405.38 is DENIED.

As a procedural matter, the court continued this Motion from February 10, 2026 so that it could first rule on Defendant Sandeep Khanna's ("Defendant") Motion for Reconsideration of the Order Denying Defendant's Motion to Expunge the Lis Pendens. Thereafter, Plaintiff filed and served a supplemental declaration seeking additional attorney's fees for the Motion for Reconsideration as well as a Notice of Supplemental Authority. Defendant subsequently brought an ex parte application seeking to file and serve a limited response to Plaintiff's Supplemental Declaration and Notice of Supplemental Authority only. The court granted the ex parte application permitting Defendant a limited response, and also allowing Plaintiff a reply. (See Order filed March 24, 2026.) However, Defendant's supplemental response exceeds the scope of the court's March 24, 2026 Order as does Plaintiff's supplemental reply. As such, the court disregards any arguments that are not directed to issues specifically addressing Plaintiff's Supplemental Declaration and Notice of Supplemental Authority.

Plaintiff brings this Motion seeking attorney's fees and costs of $118,599.70 as the prevailing party after the court denied Defendant Sandeep Khana's ("Defendant") Motion to Expunge Plaintiff's Lis Pendens. (See Defendant's Request for Judicial Notice, Exh. 4.) The court found that Plaintiff proved by a preponderance of the evidence for the motion to expunge the validity of the claim that Defendants did not comply with the requirements of Civil Code section 2924m and that this failure was unfair competition because it took away the opportunity for people who wanted to live in the house to bid on the property. (*Ibid.*) The court also ruled that Plaintiff was the prevailing party on the underlying motion to expunge. (*Ibid.*)

"The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) This attorney's fees provision was enacted to control misuse of the lis pendens procedure. (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1022.) The Legislature did not define the term "substantial justification" in the statute. However, in *Castro*, the Court of Appeal found that the discretionary language in section 405.38 is similar to the language of "substantial justification" in the discovery statute. (*Id*. at p. 1023, fn. 13.) Under the discovery statutes, "substantial justification means a justification that is well-grounded in both law and fact." (*Diepenbrock v. Brown* (2012) 208 Cal.App.4th 743, 747; *Doe v. United States Swimming, Inc*. (2011) 200 Cal.App.4th 1424, 1434.) The imposition of attorney's fees and costs to the prevailing party is mandatory unless the court makes specified findings supporting the denial of fees. (*J&A Mash & Barrel, LLC v. Superior Court of Fresno County* (2022) 74 Cal.App.5th 1, 42, citing *Castro, supra*, 116 Cal.App.4th at p. 1018.)

The court finds that Defendant establishes that he acted with substantial justification and/or circumstances would make the imposition of sanctions unjust here. Defendant's underlying motion argued that there was no private right of action under Civil Code section 2924m, which Plaintiff initially conceded and the court agreed. (See Defendant's Request for Judicial Notice, Exh. 4.) The Second Amended Complaint, which was the operative pleading at the time, did not contain a cause of action for violation of Civil Code section 2924m, and thus Plaintiff relied on the unfair competition law ("UCL") as the basis for his claim. (*Ibid.*) Further, in disputing that the alleged noncompliance with section 2924m supported the lis pendens, Defendant explains that he reviewed Civil Code section 2924m, the mandatory notice provisions, and appellate authority discussing section 2924m, and understood that courts had not reached a uniform interpretation of section 2924m's effect on post-sale finality. (Defendant's Decl., ¶¶ 20-24.) As such, the court cannot conclude that Defendant lacked substantial justification in bringing the motion. Even if Defendant's analysis was incorrect, these circumstances make the imposition of sanctions unjust where Defendant states under penalty of perjury in his declaration that he performed this legal analysis before filing the underlying motion to expunge. Additionally, the case law regarding section 2924m is not well established and this court's prior rulings are not a law of the case prohibiting Defendant from raising his arguments in subsequent motions. (9 Witkin, *Cal. Pro*c. 6th Appeal § 480 (March 2026 update) ["The doctrine of 'law of the case' deals with the effect of the first appellate decision on the subsequent retrial or appeal"].)

Plaintiff's and Defendant's Requests and Supplemental Requests for Judicial Notice are GRANTED, except to Plaintiff's Supplemental Declaration which the court does not need to take judicial notice of since it is already before the court in ruling on this Motion. However, while the court may take judicial notice of the remaining court documents, it does not take judicial notice of the truth of hearsay statements in court files, including pleadings, affidavits, testimony, or statements of fact. (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, fn.7.) Similarly, while the court may take judicial notice of documents recorded against the property, it cannot take judicial notice of factual matters asserted in these documents. (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1, citing *Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1102.)

Plaintiff's Evidentiary Objections are ruled on as follows:

No. 1 is SUSTAINED to "I did not participate in or control the statutory processes challenged in this case" as improper legal conclusion, and OVERRULED as to the remainder.

Nos. 2-15 and 17 are OVERRULED.

No. 16 is OVERRULED to the first two sentences in paragraph 47, and SUSTAINED to remainder based on lack of foundation.

No. 18 is SUSTAINED to "do not have the resources to hire counsel" as contradicts prior sworn deposition testimony, and OVERRULED to the remainder.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 15

25-CIV-06341 MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT	MICHAEL TSIVYAN
ANDREW G WATTERS	JERAMY STEPHEN STONE

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF MOJTABA TAIEBAT

TENTATIVE RULING:

The court on its own motion continues the hearing until September 8, 2026 at 2:00 p.m. in Department 4 based upon the fact that there is a pending demurrer on August 4, 2026, which is a potentially dispositive motion and the court finds would cause prejudice to the client if counsel were allow to withdraw at this time without the client having another attorney in place. The court notes that it makes this ruling after having initially reviewed the pleadings and seeing the basis for counsel's request to withdraw and counsel for plaintiff and cross-defendant Mojtaba Taiebat.

2:00 PM
LINE 16

25-CIV-09820 ROSALIE BACANI VS. HISHAM HASAN, ET AL.

ROSALIE BACANI	SCOTT MAURER
HISHAM HASAN	PRO SE

MOTION TO COMPEL ARBITRATION AND DISMISS COMPLAINT

TENTATIVE RULING:

The court DENIES defendant's motion to compel arbitration.

Counsel for plaintiff Rosalie Bacani states that he was never served with the motion, but only discovered it when he checked the online docket to see if an answer had been filed. (Maurer Decl., ¶ 2.) While proper notice is required for the court to have jurisdiction to hear a motion (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed]), plaintiff has filed a substantive response and has provided no evidence of prejudice. Thus, plaintiff has waived the procedural defect. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.)

California law strongly favors arbitration finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id*., § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Defendant bear the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

A motion to compel arbitration triggers a three-step framework that shifts the burden of production between the parties. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) First, the moving party bears an initial burden of producing prima facie evidence of an agreement to arbitrate. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754–755); Cal. Rules of Court, rule 3.1330.) If the moving party meets this burden, step two shifts the burden to the party opposing arbitration to identify a factual dispute as to the agreement's existence. (*Ibid*.)

If a dispute is identified, the third and final step returns the burden to the moving party to prove, by a preponderance of the evidence, a valid arbitration agreement between the parties. (*Gamboa*, *supra*, at p. 165.)

Defendant does not include any declaration but simply cites the language claimed to be the arbitration agreement, to wit:

> Section 14.17 WAIVER OF JURY TRIAL. EACH PARTY ACKNOWLEDGES AND AGREES THAT ANY CONTROVERSY THAT MAY ARISE UNDER THIS AGREEMENT, INCLUDING ANY INDIVIDUAL TRANSACTION DOCUMENTS OR EXHIBITS, SCHEDULES, ATTACHMENTS AND APPENDICES ATTACHED TO THIS AGREEMENT, IS LIKELY TO INVOLVE COMPLICATED AND DIFFICULT ISSUES AND, THEREFORE, EACH SUCH PARTY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LEGAL ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT, INCLUDING ANY INDIVIDUAL TRANSACTION DOCUMENTS, EXHIBITS, SCHEDULES, ATTACHMENTS OR APPENDICES ATTACHED TO THIS AGREEMENT, OR THE TRANSACTIONS CONTEMPLATED HEREBY.

(Motion to Compel at p. 3.) Defendant states that the agreement is attached as Exhibit A, but it is not. As plaintiff points out, this language cited in defendant's brief shows only an agreement to waive a jury trial. Courts hear both jury and court trials and the parties may expressly waive their right to a jury trial. There is no agreement to arbitrate this case. Thus, defendant has not met the prima facie burden to show the existence of a valid arbitration agreement. Plaintiff attaches the entire agreement and there is nothing in the agreement which has any additional language regarding arbitration. (Maurer Decl., ¶3, Ex. 1.) To the contrary, the agreement requires litigation in a California court. (*Id*., Ex. 1, § 14.16 [choice of forum: Each party submits to jurisdiction in California and "Each Party irrevocably and unconditionally submits to the exclusive jurisdiction of such courts and agrees to bring any such action, litigation, or proceeding only in the State of California."].) The court notes, but does not decide the issue, that "California law does not allow predispute jury trial waivers" (*EpicentRx, Inc. v. Superior Court* (2025) 18 Cal.5th 58, 69 [citing *Grafton Partners v. Superior Court* (2005) 36 Cal.4th 944, 956].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 17

25-CLJ-00768 BANK OF AMERICA, N.A. VS. ROBERTO RAFAEL SEMINARIO

BANK OF AMERICA, N.A.	ANTHONY DIPIERO
ROBERTO RAFAEL SEMINARIO	PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

On May 2, 2025, plaintiff served by mail defendant Roberto Rafael Seminario with requests for admissions. (Declaration of Brian Langedyk, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 18

25-CLJ-04634 WELLS FARGO BANK, N.A. VS. FRANCISCO J TORIBIO

WELLS FARGO BANK, N.A.	EDGAR B LOPEZ
FRANCISCO J TORIBIO	PRO SE

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Wells Fargo Bank, N.A.'s unopposed motion to deem facts admitted.

On August 20, 2025, plaintiff served by mail defendant Francisco J. Toribio with requests for admissions. (Declaration of Edgar B. Lopez, ¶¶ 2, 3 & Ex. 1.) More than thirty-five days have passed and there have been no responses. Plaintiff sent a meet-and-confer letter to defendant and there has been no response. (*Id.*, ¶ 5, Ex. 2.) Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 19

26-CIV-03692 HILLTOP 5, LLC VS. JIANGUANG ZHANG, ET AL.

HILLTOP 5, LLC KEVIN S EIKENBERRY
JIANGUANG ZHANG

DEFENDANT ZERS DOUGLAS, LLC'S MOTION TO EXPUNGE LIS PENDENS

TENTATIVE RULING:

Defendant Zers Douglas, LLC ("Zers LLC") moves for an order expunging a lis pendens filed by Plaintiff Hilltop 5, LLC, pursuant to Code of Civil Procedure section 405.30 on real property located at 524 Oak Grove Avenue, Burlingame, CA (the Property).

A party to an action who asserts a "real property claim" may record a notice of pendency of action ("lis pendens") in the office of the recorder of each county in which the real property is situated. (Code Civ. Proc., § 405.20.) A "real property claim" is defined as "[a] cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading." (Code Civ. Proc., § 405.4.)

Defendant argues that Plaintiff's pleading does not contain a real property claim because Plaintiff seeks only declaratory relief and that Plaintiff's ultimate objective is not to take title but to satisfy a money judgment. The Court disagrees because the declaratory relief claim is based upon a real property claim that supports a valid lis pendens.

Plaintiff obtained an abstract judgment against Defendant Zhang and recorded it with the San Mateo County Recorder's Office, creating a judgment lien against Defendant Zhang that attaches to all interests in real property held by Zhang. (Eikenberry Decl., ¶ 10, Ex. C, Recorded Abstract Judgment; *See also*, Code Civ. Proc., §§ 697.310, subd. (a), 697.340, subd. (a).) Plaintiff's complaint alleges that Defendant Zhang is using Defendant Zers LLC as an alter-ego to hold title to real property such that the property cannot be reached by Plaintiff and other creditors. A successful judgment in this action would result in the property being treated as belonging to Defendant Zhang and thus subject to Plaintiff's judgment lien. Such a judgment would affect the title of the Property. For the purpose of this motion, the allegations in the Complaint sufficiently support the claim that Zhang has used Zers LLC as an alter-ego and that the latter holds title to the Property for the benefit of Zhang.

Under Code of Civil Procedure section 405.33, the Court shall order a conditional expungement where "the real property claim has probably validity, but adequate relief can be secured to the claimant by the giving of an undertaking." Here, a conditional expungement is appropriate because the real property claim has probable validity but Plaintiff is interested only in the monetary value of the property. (*See Trapasso v. Superior Court* (1977) 73 Cal.App.3d 561, 567-

68 [where complaint established that plaintiff was only interested in the monetary value of the property, trial court did not abuse its discretion by determining that plaintiff would be afforded adequate relief by defendant's furnishing security].)

Here, both parties seek an order expunging the lis pendens, conditioned on the deposit of the net sellers proceeds into an interest-bearing trust account. However, the parties disagree as to the *amount* of the proceeds.

The preliminary title report on the Property indicates that it is subject to a mechanics lien of $104,151.50, recorded on April 17, 2025, a $1,350,000 deed of trust recorded on April 25, 2025, and the lis pendens recorded in this action on May 11, 2026. (Eikenberry Decl., ¶ 15, Ex. D, Preliminary Report, at p. 4-5.) Plaintiff does not propose including those amounts in the net seller's proceeds.

The Estimated Seller's Closing Statement shows net sellers proceeds of $917,624.67. It also shows three payoffs totaling $1,720,646.10 for the following:

- an estimated $1,416,000.00 to Mahmoud Ghezavat;
- an estimated $102,053.44 to GC Alminim, Inc.; and
- an estimated $202,592.78 to Xanadu Construction.

(Eikenberry Decl., ¶18, Ex. E, Estimated Seller's Closing Statement, at p. 1)

Plaintiff argues that the three payoffs are of "questionable validity." The Xanadu lien was recorded on April 17, 2025. Under Civil Code 8460(a), Xanadu was required to file a lawsuit to foreclose its lien by July 16, 2025. Plaintiff alleges it has not done so; thus the lien is invalid. Plaintiff characterizes the payouts to Mahmoud Ghezavat and CG Alminim, Inc., as "a mystery." The Preliminary Title Report does not show any liens or other exceptions to title in favor of those two payees. Plaintiff asserts that Zers LLC (through Zhang or judgment debtor Zers Development Inc.) likely caused deeds of trust in favor of Mahmoud Ghezavat and CG Alminim Inc. to be recorded in the San Mateo County Recorder's Offices on June 1, 2026, and June 3, 2026, as Instruments #2026-031232 and 2026-031824, respectively. Plaintiff does not have copies of those recorded deeds of trust and claims they have not yet been imaged by the county recorder and made public. (Eikenberry Decl., ¶¶ 19.)

Plaintiff alleges that as a result of its efforts to enforce and collect the subject judgment, Zhang and judgment-debtor Zers Development, Inc. have caused Zers LLC to take action – by not contesting the Xanadu lien and by signing and recording two deeds of trust on the property on June 1 and June 3, 2026, to shield, divert and abscond with $1,720,646.10 in net sellers proceeds – to reduce the net sellers proceeds from the sale of the property. (Eikenberry Decl., ¶ 20.)

Absent the above three payoffs, the total net sellers proceeds would be <u>$2,638,270.77</u> ($1,720,646.10 + $917,624.67). Given the requirement that an undertaking be sufficient to "indemnify the claimant for all damages proximately resulting from the expungement," the Court finds $2,638,270.77 to be an appropriate amount to be held in escrow pending resolution of this matter, as a condition to expunging the lis pendens on the Property. (*See* Code Civ. Proc., § 405.33.)

Accordingly, the Court GRANTS Defendant's Application for Expungement of Lis Pendens on the following conditions:

1. The Lis Pendens recorded by Plaintiff Hilltop 5, LLC in this action on May 11, 2026 as Instrument No. 2026-026767 of the San Mateo County Recorder's Office against the real property commonly known as 524 Oak Grove Avenue, Burlingame, CA 94010 (APN-029-083-020) is expunged effective upon the performance of the conditions set forth below;

2. Upon the close of the pending sale of the Property, pursuant to Old Republic Title Company Escrow No. 1115040918-CT, net seller's proceeds of $2,638, 270.77 shall be disbursed from and paid out of escrow in the form of a check payable to "Clerk, San Mateo County Superior Court" with a memo notation on said check "for deposit in case # 26-CIV-03692." Said check shall be delivered by messenger to the Clerk at the Clerk's office located on the first floor of the courthouse located at 400 County Center, Redwood City, CA. The Clerk shall issue a receipt for said check and provide the receipt to the messenger. A copy of said check and the receipt issued by the Clerk shall be forward by Old Republic Title Company to counsel for Plaintiff Hilltop 5, LLC by email sent to Kevin@EikenberryLawFirm.com and to counsel for Defendant Zers Douglas LLC by email to Janry.mak@gmail.com. Once net seller's proceeds are paid and received by the Court they shall be deposited into an interest-bearing account until such time as the Court in this action determines entitlement thereto; and

3. Contemporaneously with the close of the pending sale of the Property, the mechanics lien recorded on the Property on April 17, 2025 as Instrument No. 2025-18492 of the San Mateo County Recorder's Office, the deed of trust recorded on the Property on June 1, 2026 as Instrument No. 2026-031232 of the San Mateo County Recorder's Office, and the deed of trust recorded on the Property on June 3, 2026 as Instrument No. 2026-031824 of the San Mateo County Recorder's Office are removed, reconveyed and extinguished as liens that encumber the Property. To the extent that any or all of those recorded documents create any lien rights, such lien rights are transferred to the net seller's proceeds of $2,638,270,77 deposited with the Court. Counsel for the parties are to meet-and-confer for the proper form of any documents that need to be recorded and to effectuate the signing and filing of the documents.

The Court separately orders that plaintiff serve Xanadu Construction, Mahmoud Ghezavat, and CG Alminim with notice of this Order and the Complaint in this action and file proofs of service with the Court within 14 days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order and judgment in two separate documents consistent with the Court's ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 20

26-UDL-00202 MARK SCAFINE, ET AL. VS. BLAKE ESQUEDA, ET AL.

MARK SCAFINE	JAMES D. FRANGOS
BLAKE ESQUEDA	PRO SE

DEFENDANTS' MOTION TO VACATE AND SET ASIDE PURPORTED STIPULATION FOR ENTRY OF JUDGMENT AND VOID ACTIONS PURSUANT TO C.C.P. § 473(d)

TENTATIVE RULING:

The unopposed Motion to Vacate and Set Aside Purported Stipulation for Entry of Judgment and Void Actions Pursuant to C.C.P. § 473(d) (the "Motion") brought by Defendants Blake Esqueda and Denise Haver is DENIED.

Background

This is an unlawful detainer action in which Plaintiff alleges that Defendants owed $3,644.00 in rent at the time of being served with a three-day notice to pay rent or quit. Defendants filed an Answer on March 13, 2026, as well as a Notice of Related Case attempting to relate case 19-UDL-00087 and possibly also case 25-UDL-01763, which this Court found not to be related. (Order Finding Cases Are Not Related, signed and filed on March 19, 2026.) An initial Unlawful Detainer Conference and Trial were held before the Commissioner on April 1 and 3, 2026, respectively. At that trial, the "Parties inform[ed] the Court that they [were] close to settling the matter" and were "handed Department 4's Pretrial Order in open Court." (Minute Order, Court Trial, April 3, 2026.)

The day before the Pretrial Conference ("PTC"), the parties informed the Court that the case had not settled, so the Court discussed the length of trial required for "Defendants claims of [] retaliation and habitability," and, "The Court [brought] up ways to have witnesses appear if there is no agreement from parties." (Minute Order, PTC, April 10, 2026, p.1.) Further, the "Court and parties discuss[ed] exhibits," and the Court raised the "issue regarding authentication of exhibits" and also noted that there had not been a Request for Judicial Notice, so that Judge Fineman pulled the Civil and Health and Safety Codes. (*Id*., p.2.) In addition, "The Court [went] over the rules of evidence," and asked and the parties confirmed that they had received the Pretrial Order. (*Ibid.*) The Court asked Defendants about their Answer, noted that Defendants had not filed a Cross-Complaint, and reviewed hearsay, at which point Plaintiff's counsel confirmed that he would make hearsay objections to unauthenticated evidence. (*Ibid.*) "The Court inform[ed] parties that if there are no agreement for admissibility of exhibits the Court will proceed per the evidence code," and "inform[ed] Defendants that as they are self-represented that the Court will treat them the same as if they were an attorney" and "expects no surprises from parties." (*Ibid.*)

The records of the Court Trial further show that the Court has devoted a great deal of effort to ensuring that Defendants understood what they needed to do to submit evidence for trial via the Pretrial Order and the Pretrial Conference, but Defendants did not take the steps required.

(Minute Order, Court Trial, April 15, 2026, (the "Minutes from Trial").) At trial, *inter alia*, Defendants tried to add a police report as evidence, "The Court inform[ed] parties that exhibits needed to be exchanged prior to trial as stated in the Court's Pretrial Order which the parties previously confirmed that they received," and Plaintiff's counsel objected. (Minutes from Trial, pp.1-2.)

The Court noted that Defendants' papers needed to be filed in the proper format, and reviewed Defendants' Witness List. Defendants informed the Court "that their witnesses are not present. The Court notes that she had informed Defendants at the Pretrial Conference regarding subpoenas for witnesses." (*Id*., p.2)

On both of these points:

> The Court asks Defendants how they plan to have the report from San Mateo Police Department authenticated without witnesses. Defendants inform the Court that they have a copy of the report that is certified and provide it to the Court. The Court notes that the copy of the report given to her is a copy of the report with highlights and no certification. Plaintiffs' counsel objects to the report as hearsay. The Court informs Defendants that the report cannot be submitted as evidence as it is not certified and that Plaintiffs' counsel objects. The Court asks Defendants if they talked to the officer who wrote the report. Defendants inform the Court they have not. The Court informs Defendants that today is the date of the Court Trial and that they had extra time to prepare …. The Court asks Defendants if they have prepared a subpoena for the Court to sign. Defendants inform the Court that they did not.
>
> The Court informs Defendants that none of the evidence that they have provided the Court can come in at trial as there is no authentication. At the Pretrial Conference the Court informed the parties regarding authentication of exhibits, rules of evidence, and Plaintiffs' counsel had said that he would object if there was no authentication as to Defendants' evidence. The Court asks for an offer of proof by Defendants on their evidence. Argument presented by Defendants. The Court will not allow in any evidence that is not authenticated.

(*Ibid*.) Defendants also had surprised Plaintiffs' counsel by naming him as a witness, and the Court explained the procedure for calling opposing counsel as a witness, noting that Defendants had not identified him at the PTC. (*Ibid*.)

Plaintiffs' counsel requested a break to discuss settlement, and Defendants did not object. As to settlement, the Minutes from Trial details the care with which the Court ensured that Defendants understood and agreed to the Stipulated Judgment before signing it.

The Court even reviewed the collateral matter of Case No. 19-UDL-00087, which never had been assigned to a judge and which the Court had deemed unrelated after Defendants had sought to relate it (and another case that the Court also deemed unrelated) in its Order filed on March 19, 2026. The Minutes from Trial explicitly record that the Court further went over Plaintiffs' counsel's request, which is reflected in the Stipulation for Entry of Judgment signed by this Court and filed on April 15, 2026 (the "Stipulated Judgment"), to clear Defendants' record, and to enter an Order *nunc pro tunc* as of the date that the Request for Dismissal was entered in that matter so that the case was unsealed. (Minutes from Trial, p.3.)

As to the Stipulated Judgment, further:

> • "The Court asks if the Defendants agree to the Stipulated Judgment. Defendants confirm they agree." (*Id*., p.4.)
>
> • "The Court reviews the Stipulated Judgment," raising various points and informing the parties that they "will need to initial the changes made to the attachment if they so agree." (*Ibid*.) Accordingly, the Stipulated Judgment bears amendments and initials. (Stipulated Judgment, Att. 1, at pp.2-3.)
>
> • "Plaintiffs' counsel explained the changes and issues to Defendants and all parties have agreed. [¶] The Court signs the Stipulated Judgment."

On May 22, 2026, this Court denied Defendants' Proposed Order Staying Execution of Writ of Possession Pending Evidentiary Hearing on Motion to Vacate Pursuant to CCP § 473(d) (Order Denying, signed and filed on May 22, 2026), and a similar Proposed Order on May 26, 2026, noting that "Commissioner Elliott denied this relief on 5/22/26. Judge Fineman cannot change that order." (Order Denied, May 26, 2026.) The Court again denied another similar Proposed Order brought *ex parte* on May 29, 2026, with handwritten reasoning provided by the Commissioner including that relief pursuant to Code of Civil Procedure section 473, subdivision (d) must be sought by noticed motion. ([Proposed] Order Staying Execution of Writ of Possession and Setting Aside Stipulation, signed and filed on May 29, 2026.) A Writ of Possession issued on June 4, 2026.

By the Motion, Defendants ask the Court to set aside and vacate the Stipulated Judgment, and any subsequent possessory Orders arising therefrom.

The Motion Is Denied.

In contrast to the history detailed *supra*, Defendants now declare that:

> On April 15, 2026, opposing counsel induced our signatures on a hallway stipulation under extreme economic duress, promising our public records would be cleared. When asked what the pending nunc pro tune changes were for, counsel explicitly represented that it was an administrative matter involving an "unfinished divorce." This statement was a complete fabrication designed to keep us in ignorance while Plaintiff secretly modified and sealed a 2019 clerk default case without ever serving us with copies of the underlying moving papers.

(Defendants' Joint Decl., ¶ 5.) Yet it is clear from the Minutes from Trial that the Court walked through the Stipulated Judgment with the parties, that Plaintiff's counsel also explained the changes and issues to Defendants before the Court, and that all parties agreed to the Stipulated Judgment, initialing changes thereto. (Minutes from Trial, p.2.) The Court would not have signed the Stipulated Judgment without ensuring that all parties actually agreed. In light of the Court's detailed records, Defendants' assertion that the Stipulated Judgment "was procured via active extrinsic fraud, economic duress, and a willful breach of candor toward the tribunal" is unpersuasive. (Motion, 2:14-15.)

Plaintiffs also assert that the Stipulated Judgment and the underlying action "are void *ab initio* due to a total absence of standing, lack of subject-matter privity, material real property variance," so that they bring the Motion pursuant to Code of Civil Procedure section 473, subdivision (d). (Motion, 2:11-13.) However, the statute provides that:

> The court may, upon motion of the injured party, or its own motion, correct *clerical* mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

(Code Civ. Proc., § 473, subd. (d) (emphasis added).) Further, the Supreme Court of California specifies that a Court has both inherent power "to vacate and correct its judgments, which because of clerical error are improvidently or inadvertently made, as well as the power under section 473 of the Code of Civil Procedure to correct clerical errors" (*Bastajian v. Brown* (1941) 19 Cal.2d 209, 214 (*Bastajian*)), underscoring that, "Independently of statute a trial court has power to correct mistakes and to annul orders and judgments inadvertently or improvidently made" (*ibid*. (citations omitted)). The *Bastajian* Court emphasizes that:

> While a court has power to set aside judgments and orders inadvertently made which are not actually the result of the exercise of judgment, it has no power, having once made its decision after regular submission, to set aside or amend judicial error except under appropriate statutory procedure.

(*Ibid.* (citations omitted).) It is very clear from the record detailed above that the Court did not sign the Stipulated Judgment due to a clerical error. Further, the Court noted and signed the Stipulated Judgment in the course and as a result of its extensive efforts to ensure Defendants' full awareness of its contents. Accordingly, Defendants failed to identify a judicial error here. Defendants appear to be raising legal arguments that do not fall within the scope of the statute.

Though Defendants do not explicitly move under subdivision (b) of the statute, the Court considered whether the Motion might sound in that subdivision of section 473 of the Code of Civil Procedure, which provides, in relevant part, that:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.

(Code Civ. Proc., § 473, subd. (b).) However, the Court's care to ensure that the parties were not stipulating through mistake, inadvertence, surprise, nor excusable neglect, which is reflected extensively in the Court's records of the first trial on April 3, 2026, the PTC, and the trial on April 15, 2026, makes it highly unlikely that Defendants could make a sufficient showing under this subdivision. The statute also requires that, "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted" (*Ibid*.) This requirement has not been fulfilled.

Procedural Notes

The Motion was to have been served and filed by May 29, 2026. (Code Civ. Proc., § 1005, subd. (b).) However, it was filed and service is declared to have been effected on June 3, 2026. Thus, Plaintiff was not afforded sufficient time to oppose. If Plaintiff wants the motion to be continued, he shall properly contest the tentative ruling and appear at the hearing.

The Court did not consider *Defendants' Omnibus Supplemental Memorandum of Points and Authorities and Joint Declaration in Support of Pending Motions to Vacate Stipulation and Judgment; Comprehensive Exhibit Index (Exhibits H-P)*, which Defendants filed on June 12, 2026, three days after the Opposition was due. From the title, it appears to be another version of the Motion. There is simply no way that Plaintiff had an opportunity to oppose this filing, which opportunity already was insufficient as to the Motion itself.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 21
26-UDL-00441 T. ANNE LASSAHN VS. JOANNE STILES

T. ANNE LASSAHN COREY M. POLLAK
JOANNE STILES

MOTION TO SET ASIDE DEFAULT JUDGMENT

TENTATIVE RULING:

The court GRANTS defendant Joanne Stiles' motion for relief from default.

Plaintiff T. Anne Lassahn correctly objects that defendant failed to provide the statutory notice. If plaintiff wishes more time to file a further opposition, she should properly contest the tentative ruling and the court will continue the hearing and allow plaintiff to file another opposition. Since plaintiff has also filed a substantive objection, the court will issue a tentative ruling based upon the arguments made.

Plaintiff's request for judicial notice is granted. However, such notice is limited to the existence and content of the documents and not the truth of the matters asserted in the documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389,400.)

The first issue is whether defendant was personally served as stated by the registered process server's declaration. There is a presumption that there is proper service when there is a registered process server's return. (Code Civ. Proc., § 647.) Once shown, the burden shifts to the party challenging service to produce evidence that service did not occur as stated. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.). The presumption can be rebutted by a declaration credited by the court. (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 941 citing *City of Los Angeles v. Morgan* (1951) 105 Cal.App.2d 726, 729-731.) Defendant has offered evidence sufficient to rebut the presumption of valid personal service. She states that she was at home on April 28, 2026 and that she was not personally served as she had been previously. Instead, she discovered the postings in the evening. (Stiles Decl. at p. 1.) Plaintiff presents no evidence in opposition to this contention. The court credits defendant's statements in that she admits that she has been personally served previously, affirmatively states that while she was at home on April 28, 2026, she was not personally served.

Plaintiff argues that defendant had actual notice of the service of summons and thus default is proper. However, she had actual notice of service by posting, which provided her additional time to file a response. The posting is complete the tenth day after posting and mailing. (Code Civ. Proc., § 415.45, subd. (c).) An answer must be filed within ten days after service of the summons and complaint, but that period excludes Saturdays, Sundays, and other court holidays. (Code Civ. Proc., § 1167, subd. (a).) There is no proof of service by mail to start the running of the ten days. Thus when defendant tried to file her answer on May 26, 2026, her answer was timely.

Plaintiff has attached a proposed answer to her declaration as Exhibit A, a required element for relief from default. The answer is not deemed filed but shall be filed and served within five days of notice of entry of default.

The court also finds that defendant is entitled to relief under Code of Civil Procedure section 473, subdivision (b) that her failure to file her answer was on the basis of mistake, inadvertence, surprise or excusable neglect. Even if she was personally served, her belief, which the court credits, that she was served by posting, the failure of mailing of the summons and complaint to start the time to answer running, and her diligence on attempting to file an answer on May 26, 2026 support the court's finding.

The law strongly favors trial and disposition on the merits and any doubts in applying section Code of Civil Procedure section 473 must be resolved in favor of the party seeking relief from default. (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 24.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

POSTED: 3:00 PM